

Tentative Rulings and Resolution Review Hearings
May 18, 2026
Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

CARTER VS. PRESTA

CASE NUMBER: 26CV-0210058

Tentative Ruling on Motion to Set Aside Default: Defendant Christine Presta moves to set aside the default entered against her on April 8, 2026. Plaintiff Randy Carter opposes the motion. As a preliminary matter, while Plaintiff timely filed the Opposition on May 5, 2026, the Proof of Service filed May 7, 2026 reflects service by mail on May 6, 2026. This is untimely service, especially given that the Opposition was only served by mail. CCP § 1005(b). Instead of a substantive Reply, Defendant filed a Notice of Non-opposition. When a document is untimely served, the Court's general practice is to continue the matter to allow the party who did not receive timely notice the opportunity to provide a substantive Reply. However, in this instance, the Court is proceeding on the merits as the Court's ultimate ruling is in favor of Defendant.

Merits. The Complaint in this matter was filed on March 5, 2026, by Plaintiff, in pro per. Proof of Service of Summons was filed on March 10, 2026, reflecting personal service of the Summons on March 6, 2026. Plaintiff requested entry of default on April 8, 2026, and default was entered on the same date. Plaintiff also requested a clerk's judgment on April 8, 2026. However, the clerk returned it to Plaintiff based on a court judgment being required. Per the declaration of counsel, Defendant attempted to file her Answer and Cross-Complaint on April 13, 2026, however, both were rejected due to Defendant being in default. Defendant filed the Motion to Set Aside on April 16, 2026.

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is

granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

CCP § 473(b).

However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473(c)(2).

Defendant moved only under the mandatory provision of CCP § 473(b) and specifically asserted that the delay "was not the fault of Defendant herself, but rather came about as the result of surprise or excusable neglect of counsel in being unable to calendar the correct deadline response date." *Fuson Decl.* ¶ 7. Entry of default was discovered by Defendant on April 13, 2026, and the motion was filed just three days later. Because an attorney's sworn affidavit attesting to the attorney's surprise or neglect was filed, relief is mandatory. Even if relief were not mandatory, the Court finds that Defendant has established excusable neglect, has acted diligently since discovering that default was entered, and that setting aside the default is in the interest of justice. The default entered April 8, 2026, is ordered set aside.

Plaintiff requested attorney fees and provided an invoice totaling \$5,260 in legal fees. It is unclear from the invoice what services are being billed and who performed the work. The Court notes that some entries were billed at \$150 per hour and some were billed at \$250 per hour. A number of the entries appear to be related to the entire case, not just this motion. The Court finds that a reasonable compensatory legal fee for this matter is \$1,000.

The motion is **GRANTED**. The default entered on April 8, 2026, is set aside. Compensatory legal fees are set at \$1,000 and are due within thirty days of today. While Defendant provided a proposed Answer and proposed Cross-Complaint, they are stapled to the Opposition. The Court cannot separate a filed document. Defendant is granted ten days leave to file the Answer and Cross-Complaint. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). However, Plaintiff provided a proposed Order that will be modified to reflect the Court's ruling.

CREDIT CORP SOLUTIONS, INC. VS. COOPER

CASE NUMBER: 25CVG-01439

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on April 9, 2026 to Plaintiff Credit Corp Solutions, Inc. and Counsel Patenaude & Felix, APC for failure to timely seek entry of default as required by CRC 3.110(g). The Proof of Service of Summons filed September 15, 2025 reflects personal service on July 27, 2025. "If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed." CRC 3.110(g). Plaintiff should have sought default over eight months ago. Plaintiff did not file a written response to the Order to Show Cause.

With no sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiff and counsel. The clerk is instructed to prepare a separate Order of Sanctions. **An appearance is necessary on today's calendar to discuss the reason for the delay and when Plaintiff expects that Defendant will either appear or be defaulted.**